

TENTATIVE RULINGS

West Coast Drywall Construction Inc.

vs.

BLH Construction Co., et al.

25CV002794

Plaintiff's Motion to:

1. [Deem Admissions in Request for Admissions](#); and
2. [Compel Defendant's Responses to Discovery](#).

Hearing Date: September 18, 2026 (continued from July 24, 2026)

PARTIES TO APPEAR to discuss case status and how Plaintiff West Coast Drywall Construction Inc. wishes to proceed with its discovery motions in light of defense counsel Christopher Warne's passing.

Plaintiff's Motion to Deem Admissions in Request for Admissions

The motion by West Coast Drywall Construction Inc. ("Plaintiff") for an order that the truth of the matters specified in Plaintiff's Request for Admissions, Set One ("RFA"), to BLH Construction Co. ("Defendant") be deemed admitted is **GRANTED**.

The initial penalty for a party's failure to respond promptly to an RFA is a waiver of any objection to the requests, including those based on privilege or work product protection. [Code Civ. Proc. § 2033.280, subd. (a).] Failing to respond to an RFA does not automatically mean admissions. Instead, the propounding party must "move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction" under Code of Civil Procedure section 2033.010 et seq. [Code Civ. Proc. § 2033.280, subd. (b).] Specifically, a court "shall" grant a deemed-admitted motion "unless [the court] finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." [Code Civ. Proc. § 2033.280, subd. (c).]

On October 15, 2025, Plaintiff served its RFA on Defendant. [Woolman Decl., filed 7/24/26, at ¶ 3 and Exh. A.] To date, Defendant has not served its verified RFA responses. [*Id.* at ¶¶ 5-7.] Defendant also failed to oppose this motion.

Accordingly, Plaintiff's motion is **GRANTED**. The genuineness of any documents and the truth of any matters specified in Plaintiff's RFA to Defendant are deemed admitted. [*Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979 ("[A] deemed admitted order establishes, by judicial fiat, that a nonresponding party has responded to the requests by admitting the truth of all matters contained therein.").]

Plaintiff's request for monetary sanctions is **GRANTED IN PART**. Regardless of the reason for the delay in responding, it is mandatory that a monetary sanction be imposed on the party or attorney, or both, whose failure to serve a timely response necessitated the filing of the deemed-admitted motion. [Code Civ. Proc. § 2033.280, subd. (c).] Here, Plaintiff seeks \$1,075 in sanctions, which includes a \$525 hourly rate for 1 hour of lead attorney William Woolman's work related to the motion, and a \$275 hourly rate for associate Mattie Hodges' 2 hours on similar tasks. The hourly rates are reasonable, but the billed hours are excessive, especially for this type of motion. Given the nature and complexity of the motion, the Court determines that two hours of total work are appropriate. Therefore, the Court **PARTIALLY GRANTS** Plaintiff's request for attorney fees, totaling \$675, which covers 30 minutes of work from Mr. Woolman (\$262.50) and 90 minutes from Ms. Hodges (\$412.50). Defendant shall pay a total of \$675 in reasonable sanctions, payable to Sagaser, Watkins & Wieland PC, within 15 days of the Notice of Entry of the signed Order.

Plaintiff shall prepare the Proposed Order consistent with this Tentative Ruling and give notice to all parties.

Plaintiff's Motion to Compel Responses to Discovery

West Coast Drywall Construction Inc. ("Plaintiff") filed a motion to compel BLH Construction Co. ("Defendant") to respond to Plaintiff's first set of Form Interrogatories, Special Interrogatories, and Request for Production of Documents (collectively, "Discovery"). Plaintiff also requests \$1,075 in monetary sanctions. The unopposed motion is **GRANTED**, and Plaintiff's request for monetary sanctions is **GRANTED IN PART AND DENIED IN PART**.

Factual and Procedural Summary.

On May 30, 2025, Plaintiff filed a Complaint asserting six causes of action against Defendant. [Complaint, *passim*.] In general, Plaintiff claims Defendant owes it retention payments for two construction projects. [See *id.* at ¶ 9 and Exh. B.]

On October 15, 2025, Plaintiff served Defendant with its first set of Discovery. [Woolman Decl., filed 4/9/26, at ¶ 3 and Exhs. A-D.] Ultimately, Plaintiff agreed to extend Defendant's response deadline to December 5. [*Id.* at ¶¶ 4-5 and Exh. E.] As of the filing of the motion on April 9, 2026, Defendant has not yet served its responses to the Discovery. [*Id.* at ¶¶ 6-7.] To date, Defendant has not opposed Plaintiff's motion to compel.

Legal Standards.

Generally, the party that receives the discovery must respond to each question or demand separately, under oath, within 30 days of service. [Code Civ. Proc. §§ 2030.010, 2030.030, 2030.210, 2030.260, 2031.010, 2031.030, 2031.210, and 2031.260.] If no response is received, the requesting party may file a motion for an order compelling a response and for monetary sanctions. [Code Civ. Proc. §§ 2030.010, 2030.290, 2031.010, and 2031.300.] In such cases, the requesting party is not required to attempt informal resolution before filing the motion. [Code Civ. Proc. §§ 2030.290 and 2031.300; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.] There is no time limit for filing a motion to compel if responses have not been served. [Code Civ. Proc. §§ 2030.290 and 2031.300; *Sinaiko*, 148 Cal.App.4th at 410-411.]

Failure to respond in a timely manner waives all objections to interrogatories or document requests. [Code Civ. Proc. §§ 2030.290, 2031.300.] An unverified response is the equivalent of no response at all. [*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.] If a motion to compel response is filed and the demanding party properly requests monetary sanctions, the Court "shall" impose a monetary sanction against the losing party unless it determines that the party made or opposed the motion "with substantial justification" or other reasons make the sanction "unjust." [Code Civ. Proc. §§ 2030.290, subd. (c), and 2031.300, subd. (c).]

Discussion.

Plaintiff's motion is unopposed, and Defendant has not yet provided complete, objection-free, and verified responses to the Discovery before issuing this Tentative Ruling. Therefore, Plaintiff's motion to compel is **GRANTED**.

Despite the extension, Defendant failed to respond to an authorized method of discovery. There is no substantial justification for Defendant's conduct, and monetary sanctions are justified. [Code Civ. Proc. § 2023.010, subds. (d) and (i).] The Court has discretion to impose "reasonable" monetary sanctions. [*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 793-794; Code Civ. Proc. § 2023.030, subd. (a).]

Here, Plaintiff seeks \$1,075 in sanctions, which includes a \$525 hourly rate for 1 hour of lead attorney William Woolman's work related to the motion, and a \$275 hourly rate for associate Mattie Hodges' 2 hours on similar tasks. The hourly rates are reasonable, but the billed hours are excessive, especially for this type of motion. Given the nature and complexity of the motion, the Court determines that two hours of total work are appropriate. Therefore, the Court **PARTIALLY GRANTS** Plaintiff's request for attorney fees, totaling \$675, which covers 30 minutes of work from Mr. Woolman (\$262.50) and 90 minutes from Ms. Hodges (\$412.50).

Conclusion.

Plaintiff's motion is **GRANTED**. Within 15 days of the Notice of Entry of the signed order, Defendant shall serve complete, verified, and objection-free responses to Plaintiff's Discovery.

Plaintiff's request for monetary sanctions is **GRANTED IN PART**. Defendant shall pay a total of \$675 in reasonable sanctions, payable to Sagaser, Watkins & Wieland PC, within 15 days of the Notice of Entry of the signed Order.

Plaintiff shall prepare the Proposed Order consistent with this Tentative Ruling and give notice to all parties.